

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT (the "Agreement") is made and executed on this _____ in _____ by and between:

STI <SCHOOL NAME>, a private educational institution owned and operated by STI Education Services Group, Inc., a corporation duly organized and existing pursuant to the laws of the Republic of the Philippines with office address at <School Address> represented herein by **<name of President/School Administrator/Deputy School Administrator>**, in his capacity as <President/School Administrator/Deputy School Administrator>, hereinafter referred to as "**STI <SCHOOL NAME>**"

-and-

<HOST TRAINING ESTABLISHMENT NAME>, a corporation duly organized and existing pursuant to the laws of the Republic of the Philippines with address and location at <Address of HOST TRAINING ESTABLISHMENT>, represented herein <name of representative> in his/her capacity as the <designation>, hereinafter referred to as the "**HOST TRAINING ESTABLISHMENT**"

STI <SCHOOL NAME> and **<HOST TRAINING ESTABLISHMENT NAME>** are jointly referred to as the "**Parties**".

WITNESSETH:

WHEREAS, **STI <SCHOOL NAME>** is a private educational institution which provides formal tertiary level educational training to its students with a view towards facilitating their eventual employment.

WHEREAS, **STI <SCHOOL NAME>** proposes that its students and graduates participate in and be exposed to events that will help promote and fulfill the above objective subject to the terms and conditions set forth in this Agreement.

WHEREAS, **HOST TRAINING ESTABLISHMENT** is engaged in the _____ ;

WHEREAS, HOST TRAINING ESTABLISHMENT has represented to **STI <SCHOOL NAME>** that it has the requisite experience, expertise, manpower and capital to perform its obligations under this Agreement strictly and in accordance with its terms and conditions.

WHEREAS, **STI <SCHOOL NAME>** and HOST TRAINING ESTABLISHMENT intend to utilize their complementary strengths in order to promote technology in education, whenever applicable and justifiable;

WHEREAS, **STI <SCHOOL NAME>** and HOST TRAINING ESTABLISHMENT share a common vision and goal of improving the skills and training of young individuals to enhance their qualification for employment in the industry through a linkage program wherein HOST TRAINING ESTABLISHMENT provides training opportunities to STI students, as the case may be.

NOW, THEREFORE, for and in consideration of the foregoing premises and the mutual covenants and undertakings provided hereunder, the parties have agreed as follows:

ARTICLE I

Responsibilities of **STI <SCHOOL NAME>**

STI <SCHOOL NAME> shall:

1. Designate an OJT Adviser who shall act for and on behalf of **STI <SCHOOL NAME>** in all matters relevant and connected to the OJT Program. The scope of the OJT Adviser's tasks includes but are not limited to the following:
 - 1.1 Collaborate with the HOST TRAINING ESTABLISHMENT and the student trainee in the finalization of the OJT Training Plan. The OJT Training Plan should include competencies that the student trainee should acquire, corresponding tasks, schedule, and expectations;
 - 1.2 Monitor the progress of the training, requiring the student trainee to report their activities regularly;
 - 1.3 Observe the student trainee at work with the HOST TRAINING ESTABLISHMENT's approval;
 - 1.4 Meet with Onsite/Offsite Supervisor as needed; and
 - 1.5 Schedule deadlines for quarterly submissions of the student trainee's reports.
2. Endorse student trainee candidates for On-the-Job Training as requested by the HOST TRAINING ESTABLISHMENT;
3. Ensure that the student trainee chosen by the HOST TRAINING ESTABLISHMENT has the necessary documents and insurance coverage; and
4. Ensure the compliance of its members, particularly the student trainee, to the OJT Course Policy.

ARTICLE II

Responsibilities of the HOST TRAINING ESTABLISHMENT

The HOST TRAINING ESTABLISHMENT shall:

1. Provide the OJT Adviser with documents required to formalize their partnership with the school;
2. Discuss requests and requirements with the OJT Adviser;
3. Facilitate the screening of potential student trainees endorsed by the OJT Adviser;
4. Execute a Training Contract with the qualified student trainees;
5. Provide student trainees with adequate resources and a safe and secure workplace; and
6. Assign an Onsite/Offsite Supervisor who will be directly involved in supervising the student trainee. He/she must hold a key position in the department where the student trainee is assigned and handle tasks similar or related to the student trainee's field of study.

The scope of the Onsite/Offsite Supervisor's tasks includes but are not limited to the following:

- 6.1 Screen and select the endorsed student trainees;
 - 6.2 Discuss and finalize with the OJT Adviser and the student trainees the tasks, schedule, and expectations;
 - 6.3 Discuss with the student trainees the nature of the company, its goals and structure;
 - 6.4 Orient the student trainees on the technology or resources required to accomplish assigned tasks;
 - 6.5 Certify the student trainee's Daily Time Record (DTR);
 - 6.6 Monitor, review, evaluate, and discuss with the student trainee the status of assigned tasks/ projects, at least once a week;
 - 6.7 Communicate regularly with the OJT Adviser to assess the performance of the student trainee throughout the on-site experience;
 - 6.8 Conduct the quarterly performance appraisal using the appropriate form and discuss the results with the student trainees;
 - 6.9 Submit the quarterly Performance Appraisal Form (PAF) and the DTR to the OJT Adviser as scheduled; and
 - 6.10 Conduct exit interview.
7. Provide the student trainees with a Certificate of Completion not later than two (2) weeks after the completion of training;
 8. Transmit to STI the following documents at the end of the training period:
 - 8.1 Certificate of Completion;
 - 8.2 Duly accomplished Performance Appraisal Form (PAF); and
 - 8.3 Other pertinent reports, information, and/or documents which may be included for purposes of describing students' performances.

ARTICLE III
Responsibilities and Undertakings of Both Parties

STI and the HOST TRAINING ESTABLISHMENT mutually agree that:

1. Neither party shall unlawfully discriminate against any student trainee on the basis of race, religion, sex, creed, age, national origin or disability;
2. No employer-employee relationship exists between the HOST TRAINING ESTABLISHMENT and the student trainee;

ARTICLE IV
Waiver from Liability

Each Party shall defend and hold harmless the other party, its officers, employees, agents, representatives, subsidiaries, and affiliates from and against any liabilities, damages, claims, suits of all kinds, and costs and expenses arising from the unintentional breach by such Party of its obligations under this Agreement, except if such breach resulted in liabilities, damages, claims, suits, costs, and expenses and are due to the gross negligence or intentional breach by a Party to this Agreement. Notwithstanding the foregoing, neither Party shall be held liable to the other for loss of profits, damages of all kinds arising therefrom.

ARTICLE V
Confidentiality

Either of the Parties shall not disclose to, or use to its own benefit or permit the use by its student trainees, employees, representatives or by any third parties for their benefit any Confidential Information except strictly on a need-to-know basis and as may be necessary for the performance by said Party's obligations under this Agreement. The Parties shall take all necessary precautions to prevent any unauthorized disclosure or use of Confidential Information by any of its employees, agents, representatives or third parties. Pursuant to this Confidential Agreement, "Confidential Information" is understood and treated as business and technical information or data, which either Party may have furnished the other in connection with this Agreement.

The obligation of confidentiality and restricted use of Confidential Information shall survive the termination of this Agreement for a period of one (1) year from the date of its termination.

ARTICLE VI
Effectivity & Duration of Agreement

This Memorandum of Agreement shall commence on _____ and shall be valid for a period of one (1) year thereafter. It shall also become renewable upon mutual agreement by all parties, unless

otherwise sooner revoked, cancelled, or terminated by either party for violation of the conditions above set forth.

Either party may terminate this Agreement by giving at least ONE (1) MONTH prior written notice to the other party. In any case, the student trainee shall be allowed to complete their training with the HOST TRAINING ESTABLISHMENT.

IN WITNESS WHEREOF, the parties hereunto affixed their signatures on the ____ day of _____, _____ at _____, Philippines.

STI <SCHOOL NAME>

<HOST TRAINING ESTABLISHMENT NAME>

By

By

<Signature of signatory>

<Name of signatory>
<Designation>

<Signature of signatory>

<Name of signatory>
<Designation>

Signed in the Presence of

By

By

<Signature of witness>

<Name of witness>
<Designation>

<Signature of witness>

<Name of witness>
<Designation>

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)

)S.S.

BEFORE ME, a Notary Public for and in the city of _____, this ____ day of _____, personally appeared:

Name	Community Tax Certificate No.	Place Issued	Date Issued

Known to me to be the same persons who executed the foregoing Memorandum of Agreement, and they acknowledged to me that the same is their free and voluntary act and deed, as well as of the corporation herein represented.

This Agreement consists of ____ (__) pages, including this page.

WITNESS MY HAND AND SEAL.

Doc. No. _____:

Page No. _____:

Book No. _____:

Series of _____.